

26AVCV00313 26AVCV00313

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-09-22

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Case Number: 26AVCV00313 Hearing Date: September 22, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

GLENDAL AREA SCHOOLS CREDIT UNION, dba GLENDAL FINANCIAL,

Plaintiff,

v.

CATHERINE WILLIAMS; ONSLOW BAY FINANCIAL, LLC; and DOES 1 though 40, inclusive,

Defendants.

CATHERINE WILLIAMS,

Cross-Complainant,

v.

GLENDAL AREA SCHOOLS CREDIT UNION, dba GLENDAL FINANCIAL; and DOES 1 through 50, inclusive,

Cross-Defendants.

Case Number 26AVCV00313

[TENTATIVE]

RULING ON MOTIONS

Date of Hearing: September 22, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a lien foreclosure and breach of contract case. Plaintiff and Cross-Defendant Glendale Area Schools Credit Union, dba Glendale Financial ("Glendale") demurs to and moves to strike portions of Defendant and Cross-Complainant Catherine Williams ("Williams")'s First Amended Cross-Complaint ("FACC").

On March 5, 2026, Glendale filed its Complaint against Defendants Williams and Onslow Bay Financial LLC ("Onslow"), asserting two causes of action for (1) Foreclosure on UCC-1 Lien and Breach of Contract and (2) Declaratory Relief. Glendale alleges that Williams executed a promissory note (the "Note") payable to Plaintiff for the purchase and installation of a Solar Energy System (SES) installed on Williams' property, located at 2750 Minford Street, Lancaster, CA 93536 (the "Property"). Glendale recorded a UCC-1 financing statement for the fixtures as security and alleges that Williams has not made payments pursuant to the agreement. Onslow was named as a non-liaible and non-participating Defendant due only to its interest in the Property.

On May 12, 2026, Williams filed a Cross-Complaint against Glendale.

On May 27, 2026, Williams filed her FACC against Glendale, asserting causes of action for (1) Breach of Contract, (2) Promissory Estoppel, (3) Negligent Misrepresentation, (4) Intentional Misrepresentation and Fraud, (5) Declaratory Relief, and (6) Violation of Business and Professions Code section 17200.

On June 1, 2026, Glendale filed its Demurrer to and Motion to Strike punitives from the FACC.

On August 31, 2026, Williams filed her Oppositions.

II. Preliminary Procedural Issues

Formatting of Williams' FACC – The FACC is not in compliance with the pleading requirements of the California Rules of Court, which require for all documents filed with the Court specific line spacing, 12 point font size, a footer with the requisite specifications and containing the title of the paper, specific information to be contained on the first page, and compliance with various other formatting rules. (See Cal. Rules of Court rules 2.104 – 2.111.) The causes of action in the FACC do not specifically state the party or parties to whom they are directed. (Cal. Rules of Court, rule 2.112.)

Evidence Submitted by Williams – Williams submits a number of exhibits of which the Court has not been asked to take judicial notice. A ruling on a demurrer or motion to strike may not be based on extrinsic evidence and must be based on the face of the pleading and properly judicially noticed documents. (See *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The Court therefore declines to consider the declaration or evidence submitted by Williams in opposition.

Meet and Confer Requirement – Before filing a demurrer or motion to strike, the demurring or moving party is required to meet and confer at least five days before the date the responsive pleading is due, in person, by telephone, or by video conference, with the party who filed the pleading for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a), 435.5, subd. (a).) The demurring or moving party shall file and serve with the demurrer or motion to strike a declaration stating the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised, or that the party who filed the pleading demurred or objected to failed to respond or otherwise failed to meet and confer in good faith. (Ibid.)

Glendale provides the Declaration of Counsel Alana Anaya, who states she sent Williams a meet and confer letter on May 27, 2026 regarding the deficiencies raised on demurrer. Williams responded the same day that she disagreed, and declined to amend the FACC. The Court finds this requirement satisfied.

III. Legal Standard

Standard for Demurrer – A party against whom a complaint has been filed may object by demurrer to the pleading on the ground that the pleading does not state facts sufficient to constitute a cause of action or that the pleading is uncertain. (Code Civ. Proc., § 430.10, subd. (e), (f).) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations reasonably, liberally, and in context. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) Courts must “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Blank, supra, 39 Cal.3d at 318.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 126.) The threshold for meeting this burden is low, and “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Standard for Motion to Strike – A motion to strike lies where either (1) there is “irrelevant, false or improper matter inserted in any pleading,” or (2) where a pleading or part thereof is “not drawn or filed in conformity with the laws of this state, a court rule or order of court.” (Code Civ. Proc., § 436.) The Court has the authority to strike out any part of a pleading not filed in conformity with an order of the court. (See Ibid; Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528.)

When the pleadings are defective, “the defect may be raised by demurrer or motion to strike, or by motion for judgment on the pleadings.” (Coyne v. Krempels (1950) 36 Cal.2d 257, 262.) The grounds for a motion to strike shall appear on the face of the challenged pleading or form any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) A matter to be judicially noticed shall be specified in the notice of motion. (Code Civ. Proc., § 437, subd. (b).) The court then may strike out any irrelevant, false, or improper matter inserted in any pleading and strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend. (Perlman v. Municipal Court (1979) 99 Cal.App.3d 568, 575.)

IV. Discussion

Application – Glendale demurs to the FACC in its entirety pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f) on the grounds that the FACC fails to state facts sufficient to constitute a cause of action and is uncertain.

a. Glendale's Demurrer to the FACC

i. Uncertain, Ambiguous, and Unintelligible

Glendale demurs to the FACC pursuant to Code of Civil Procedure section 430.10, subdivision (f) on the basis that the FACC and allegations within are uncertain, ambiguous, and unintelligible.

"A defendant may demur to a complaint... on the ground that the 'pleading is uncertain.' (Code Civ. Proc., § 430.10, subd. (f).) The term 'uncertain' includes 'ambiguous' and 'unintelligible.' (Ibid.)." (Van Horn v. Dep't of Toxic Substances Control (2014) 231 Cal. App. 4th 1287, 1295.) A "[d]emurrer for uncertainty is directed at the allegations actually made. [Citation.] Demurrer for uncertainty does not lie as to immaterial matter. [Citation.] Nor will a demurrer for uncertainty lie where the facts are presumptively within the knowledge of the demurring parties. [Citation.]" (Dumm v. Pac. Valves (1956) 146 Cal. App. 2d 792, 799.) "A special demurrer on the ground that an answer is (a) ambiguous, (b) unintelligible, or (c) uncertain is insufficient unless the demurrer points out specifically wherein the pleading is ambiguous, uncertain or unintelligible. [Citation.]" (Coons v. Thompson (1946) 75 Cal. App. 2d 687, 690 (citation omitted).)

Glendale argues the FACC is uncertain because it is devoid of specific facts, dates, or identification of parties, does not specifically identify agreements referred to, and does not define the content of certain statements. (Demurrer, p. 5:2-17.) These arguments are more akin to a demurrer on the grounds that the FACC has failed to state facts sufficient to constitute a cause of action under subsection (e). Moreover, the Court finds that the FACC is not so unambiguous or unintelligible that Glendale cannot adequately respond, particularly where it has filed a detailed, multi-page demurrer addressing each cause of action asserted. While there are deficiencies in the FACC and identification of parties, discussed, *infra*, aside from the Doe Cross-Defendants, the only named Cross-Defendant is Glendale, and the FACC is clear enough to provide notice of the causes of action asserted.

Glendale's Demurrer is **OVERRULED** to the extent it is brought pursuant to Section 430.10, subdivision (f) for ambiguity.

ii. First Cause of Action – Breach of Contract

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's breach, and (4) resulting damage to the plaintiff." (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.)

Glendale argues the first cause of action is subject to demurrer pursuant to Code of Civil Procedure section 430.10, subdivision (g) because it is unascertainable whether the contract is written, oral, or implied by conduct. (Demurrer, p. 6:8-9.) Glendale did not demur pursuant to subdivision (g), so the Court cannot sustain a demurrer on that ground, and therefore declines to analyze the argument. However, Glendale also argues this claim fails because the FACC does not specify what agreements were breached, what party breached, or otherwise plead the existence of a contract. (Demurrer, p. 6:1-5.) The Court agrees.

The FACC alleges that Cross-Defendants materially breached agreements relating to the installation, servicing, operation, financing, and completion of the SES by failing to provide a functional SES, complete installation, obtain Permission to Operate (PTO), provide promised services, ensure the SES became operational, properly complete inspection and permitting requirements, and continuing enforcement efforts despite unresolved installation defects and lack of PTO. (FACC, ¶ 32.) The FACC names a number of entities, including Enium Capital Group, Voltaic Construction, Flex Energy Solar, and their related agents, and appears to refer to these entities as their corporate names, "Defendants," and "Cross-Defendants" interchangeably throughout the FACC, despite none of these companies being named as parties in this action. However, the FACC does not allege the existence of any contract with Glendale, does not attach or define the terms of a contract, does not allege that Glendale ever agreed to install, permit, obtain PTO for, operate, or inspect any SES on the Property, and does not allege that Glendale's right to recover on the loan was ever contingent on the SES becoming operational. The FACC also does not allege that Williams performed under a contract or was otherwise excused from performance.

In opposition, Williams refers to extrinsic exhibits to reinforce her claim, none of which may be considered by the Court on demurrer. (Opp., p. 3:7-8.) Williams also argues that all reasonable inferences must be accepted as true. (Opp., p. 2:7-8.) However, on the FACC's factual allegations, there is no reasonable inference that Glendale, a state credit union and financier, entered into a contract with Williams, the borrower, for installation, obtaining of permits, servicing, or operation of an SES. There is also no reasonable inference that Plaintiff was in any way discharged from making payments on her loan based on the project's non-operational and incomplete status, which Williams appears to attribute to third party entities.

The FACC fails to state facts sufficient to constitute a cause of action for breach of contract against Glendale, and the Demurrer is SUSTAINED as to the first cause of action. The Court will grant leave to amend in the event that Williams can sufficiently plead a breach of contract claim against Glendale.

iii. Second Cause of Action – Promissory Estoppel

"The elements of a promissory estoppel claim are (1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) the reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance." (Flintco Pacific, Inc. v. TEC Management Consultants, Inc. (2016) 1 Cal.App.5th 727, 734, quotation marks and brackets omitted.)

The FACC does not state facts sufficient to state a cause of action for promissory estoppel against Glendale. Specifically, the second cause of action states that "Representatives associated with Enium made promises and representations" and that Williams reasonably relied on these promises. (FACC, ¶¶ 35-36.) This allegation does not relate to Glendale. There are no allegations of any clear and unambiguous promise made by Glendale to Williams, reasonable and foreseeable reliance, or injury therefrom. There are also no allegations that Enium is associated with Glendale, that Glendale ever entered into an agreement with Williams and/or Enium regarding payments, or that Glendale ever adopted Enium's alleged promise to continue payments until the SES reached PTO status. At best, Williams may have a cause of action against Enium, who is not a party to this case, but there is nothing to support a claim against Glendale.

Glendale's Demurer is SUSTAINED as to the second cause of action. The Court will grant leave to amend in the event that Williams can plead this cause of action against Glendale based on some other ground.

iv. Third Cause of Action – Negligent Misrepresentation

The elements of a cause of action for negligent misrepresentation are "[m]isrepresentation of a past or existing material fact, without reasonable ground for believing it to be true, and with intent to induce another's reliance on the fact misrepresented; ignorance of the truth and justifiable reliance on the misrepresentation by the party to whom it was directed; and resulting damage." (Hydro-Mill Co., Inc. v. Hayward, Tilton & Rolapp Ins. Associates, Inc. (2004) 115 Cal.App.4th 1145, 1154.) The facts constituting the alleged misrepresentation must be alleged factually and specifically as to every element as with a general fraud claim, and must plead facts that show how, when, where, to whom, and by what means the representations were tendered, as the policy of "liberal construction" of the pleadings will not ordinarily be invoked. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645; SI 59 LLC v. Variel Warner Ventures, LLC (2018) 29 Cal.App.5th 146, 155.) "California courts

have recognized a cause of action for negligent misrepresentation, i.e., a duty to communicate accurate information, in two circumstances. The first situation arises where providing false information poses a risk of and results in physical harm to person or property. The second situation arises where information is conveyed in a commercial setting for a business purpose.” (Friedman v. Merck & Co. (2003) 107 Cal.App.4th 454, 477.)

Glendale reiterates for all remaining causes of action that there are insufficient facts pled to state a cause of action. As to misrepresentation and fraud, Glendale argues the FACC fails to state facts with the requisite particularity. (Demurrer, p. 8:9-11.) Williams reiterates her opposition and contention that the remaining causes of action state sufficient facts, relying on extrinsic evidence not appropriate for consideration on demurrer.

The FACC fails to state facts sufficient to constitute a cause of action for negligent misrepresentation. The FACC references representations made by “[r]epresentatives associated with Enium, Voltaic, and/or other Cross-Defendants” regarding the SES’s operational status, completion of installation, PTO approval, payment handling, inspection compliance, and expected completion and usability of the SES. (FACC, ¶ 39.) There are no facts regarding any representation made by Glendale, what that representation was, who made it, in what manner it was made, or when it was made. There are no facts alleged regarding the whether reasonable grounds existed for Glendale believing it to be true, or Glendale’s intent to induce reliance. The FACC does not connect Glendale with any of the non-party entities implicated or establish that Glendale made any representation regarding collection of payment and installation completion, PTO, or operational status of the SES. There are also no allegations to support that Glendale owed a duty to communicate accurate information.

Glendale’s Demurer is SUSTAINED as to the third cause of action. The Court will grant leave to amend in the event that Williams can plead this cause of action against Glendale based on some other representation made with the requisite particularity.

v. Fourth Cause of Action – Intentional Misrepresentation and Fraud

The essential elements of fraud, generally, are (1) a misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity; (3) intent to induce reliance; (4) justifiable reliance; and (5) resulting damage. (City of Industry v. City of Fillmore (2011) 198 Ca.App.4th 191, 211; Hinesley v. Oakshade Town Ctr. (2005) 135 Cal.App.4th 289, 294.) Fraud must be specifically pleaded. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) “This particularity requirement necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’” (Id. at 645 (citations omitted).)

The FACC alleges facts related to communications from Enium, states that “Cross-Defendants further represented that the solar system would be completed, operational, compliant with permitting and inspection requirements, and capable of providing the promised benefits associated with the solar transaction.” (FACC, ¶¶ 44-45.) There are no specific factual allegations as to any representation or fraud attributable to Glendale. For the same reasons as stated above regarding the third cause of action, the FACC fails to state facts sufficient to constitute a cause of action for fraud or intentional misrepresentation.

Glendale’s Demurer is SUSTAINED as to the fourth cause of action. The Court will grant leave to amend in the event that Williams can plead this cause of action against Glendale based on some other representation made or fraud committed with the requisite particularity.

vi. Fifth Cause of Action – Declaratory Relief

“To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party’s rights or obligations.” (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909.)

Glendale argues the fifth cause of action fails to specify which financing obligations the FACC is referring to, and that if a contract for financing exists, then Williams must seek relief under a breach of contract theory, not under a declaratory relief claim. (Demurrer, p. 8:27-9:2.) Williams argues in opposition that the FACC alleges an actual controversy concerning the enforceability of financing obligations for the SES alleged never to have become operational or received PTO. (Opp., p. 4:2-3.) The Court notes that contrary to Glendale's argument, it does not appear the fifth cause of action is seeking a sum of monetary damages from Glendale. (See *Canova v. Trustees of Imperial Irrigation Dist. Employee Pension Plan* (2007) 150 Cal.App.4th 1487, 1497.)

Nonetheless, the FACC does not plead sufficient facts to maintain this cause of action against Glendale for two reasons. First, it merely pleads that a controversy exists regarding "the enforceability of financing obligations associated with a solar system that allegedly failed to become operational, failed to obtain PTO, and failed to provide the promised benefits contemplated by the parties," and that Williams seeks judicial determination regarding "responsibility for removal of the solar panels, equipment, mounting hardware, wiring, and related solar components from Cross-Complainant's property, as well as restoration of the property, due to the alleged failure of the solar system to become operational and obtain PTO" and "the parties' respective rights, obligations, and liabilities arising from the solar transaction." (FACC, ¶¶ 52-54.) The FACC does not specify what financial obligations it refers to, who the obligations belong to, what parties are implicated, or what "solar transaction" is referenced. There are no factual allegations connecting Glendale to any of the alleged transactions, representations, agreements, or obligations, and no allegations support a reasonable inference that Glendale is somehow implicated in Williams' communications, transactions, or agreements with third party entities who are not named in this action.

Second, the relief sought and issues raised in the FACC, at least to the extent that they can be attributable to Glendale, are duplicative of the issues that must be determined in Glendale's underlying action for declaratory relief. As Williams notes in opposition, "Glendale Financial itself is pursuing enforcement of the financing obligation." (Opp., p. 4:3-4.)

A cause of action for declaratory relief should not be used as a second cause of action for the determination of identical issues raised in another cause of action. (*General of America Insurance Co. v. Lilly* (1968) 258 Cal.App.2d 465, 470.) "The availability of another form of relief that is adequate will usually justify refusal to grant declaratory relief" (*California Insurance Guarantee Association v. Superior Court* (1991) 231 Cal.App.3d 1617, 1624), and a duplicative cause of action is subject to demurrer (*Palm Springs Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290). "The declaratory relief statute should not be used for the purpose of anticipating and determining an issue which can be determined in the main action. The object of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues." (*Hood v. Superior Court* (1995) 33 Cal. App. 4th 319, 324.)

Glendale's underlying Complaint asserts a cause of action for declaratory relief, states that an actual controversy has arisen between Williams and Glendale concerning their respective rights to the SES, and seeks judicial declaration of the parties' rights with respect to the UCC-1 filing recorded by Glendale as security to finance the loan. (Compl., ¶¶ 14-16.) Thus, the fifth cause of action is derivative and seeks determination of identical issues already raised by Glendale. Williams has an adequate form of relief in the main action in defending against Glendale's claims, and no new form of relief is sought.

Glendale's Demurer is SUSTAINED as to the fifth cause of action without leave to amend. This ruling shall not be construed to implicate Williams' ability to plead a cause of action for declaratory relief in a subsequent amendment against other non-parties if Williams seeks to name any separate entity as a Cross-Defendant on a separate basis. The Court offers no opinion on the viability of any such claim.

vii. Sixth Cause of Action – Violation of Business and Professions Code section 17200

Business and Professions Code section 17200 describes unfair competition as "any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising and any act prohibited by Chapter 1 (commencing with Section 17500) of Part 3 of Division 7 of the Business and Professions Code." (Bus. & Prof. Code, § 17200.) A claim under the California's Unfair Competition Law, Business & Professions Code §§17200 et seq. ("UCL"), requires the allegation of particular facts showing the statutory elements of ongoing unlawful, unfair, or fraudulent business acts on the part of the defendant with "reasonable particularity." (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 619.) Claims by

private plaintiffs can only be brought by “a person who has suffered injury in fact and has lost money or property as a result of the unfair competition.” (Bus. & Prof. Code, § 17204.)

Glendale argues this claim fails because Williams has failed to identify any statutory, regulatory, or decisional law that Glendale has violated and fails to allege how any act or omission on the part of Glendale violated Business and Professions Code section 17200. (Demurrer, p. 9:10-11, 9:17-18.)

The Court notes that identification and violation of a specific statutory, regulatory, or decisional law is not necessarily a requirement for liability under the UCL, and the passage cited by Glendale from *Bernardo v. Planned Parenthood Federation of America* (2004) 115 Cal.App.4th 322, 351-52, which stated that a plaintiff failed to meet her burden by filing to identify a statutory, regulatory, or decisional law allegedly violated, applies only to “unlawful” business practices. A claim may still proceed under the UCL under “unfair” or “fraudulent” business practices, which do not require identification of a violated law.

However, Glendale is correct that Williams has failed to state facts sufficient to constitute a cause of action for unlawful business practices. An “unlawful business act” includes “anything that can properly be called a business practice and that at the same time is forbidden by law.” (*People v. McKale*, (1979) 25 Cal.3d 626, 632.) The FACC does not identify any law that was allegedly violated, much less any law violated by Glendale.

The FACC also fails to allege any fraudulent or unfair business practices attributable to Glendale. A claim for fraudulent business practice requires a showing that members of the public are likely to be deceived, meaning “members of the public must have had an expectation or an assumption about” the matter in question.” (*Daugherty v. American Honda Motor Co., Inc.*, 144 Cal. App. 4th 824, 838.) “[A]n ‘unfair’ business practice occurs when that practice ‘offends an established public policy or when the practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers.’ [Citation.]” (*Smith v. State Farm Mutual Automobile Ins. Co.* (2001) 93 Cal.App.4th 700, 718–719.)

The FACC alleges that “Cross-Defendants” engaged in unlawful, unfair, and/or fraudulent business practices by making misleading representations regarding the SES, attempting to enforce financing obligations tied to a non-operational SES, continuing collection efforts despite notice of defects and disputes, engaging in deceptive servicing and account practices, and reporting adverse account information. (FACC, ¶ 56.) The FACC does not attribute these acts or omissions to Glendale, does not state with the requisite particularity what representations were made and by whom, what financing obligations are being enforced or why enforcement is fraudulent or unfair, who is continuing collection efforts and why the SES’s status renders collection fraudulent or unfair, who is engaging in deceptive servicing and accounting and how any such practices are deceptive under the UCL, or how reporting adverse account information gives rise to a claim under the UCL.

The FACC does not allege any facts showing members of the public are likely to be deceived by Glendale’s conduct as defined under the UCL, nor that the initiation of collection efforts and reporting of adverse account information offends public policy or amounts in any way to being ‘unfair.’ This is particularly true here, where there is no allegation that Williams has made payments under the loan, that Glendale does not have the legal authority to foreclose on the collateral when the debt secured by it is not being paid, or that the adverse account information reported is inaccurate. Williams has also failed to allege Glendale deprived her of any specific money or property, or that any loss was a result of Glendale’s business practices.

Glendale’s demurrer is SUSTAINED as to the sixth cause of action. The Court will grant leave to amend in the event that Williams can plead this cause of action against Glendale with the requisite particularity.

b. Glendale’s Motion to Strike

Glendale moves to strike Williams’ request for punitive damages in the FACC pursuant to Code of Civil Procedure section 436, subdivision (a) on the grounds that the FACC does not plead with specificity any despicable conduct on Glendale’s part. Specifically, Glendale moves to strike the following from the FACC:

1. ¶ 50 – ““The conduct alleged herein was carried out with oppression, fraud, and/or malice, including conscious disregard for Cross-Complainant’s rights and supports an award of punitive damages pursuant to California Civil Code section 3294”; and

2. Prayer for Relief, ¶ 3 (FACC, p. 7:10-11) – “For punitive damages pursuant to California Civil Code section 3294.”

As the Court has sustained Glendale’s demurrer to the FACC in its entirety, the Court DENIES the motion to strike as moot. This denial is without prejudice to file a subsequent motion to strike to a subsequently amended Cross-Complaint.

V. Conclusion

Plaintiff Glendale Financial’s Demurrer is SUSTAINED without leave to amend as to the Fifth Cause of Action for Declaratory Relief.

The Demurrer is SUSTAINED with leave to amend as to all other causes of action.

The Motion to Strike is DENIED without prejudice as moot.

Plaintiff to file a Second Amended Cross-Complaint within thirty (30) days of this Order.